Transcription of: Easement_agreement_18Feb2000.pdf (5 scanned pages)
Transcribed: October 13, 2026. Verbatim; original wording, spelling, and punctuation preserved.
Marks: [?] uncertain reading · [illegible] unreadable · [handwritten: …], [signature], [stamp: …], [seal: …] non-typed elements · underlined captions shown in **bold**.
See *Transcription Notes* at the end.

Tax Parcel No.: 08-036.10-257

Prepared by and Return to:
COOCH AND TAYLOR
Steven H. Amick, Esq.
51 E. Main Street
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MAINTENANCE EASEMENT AGREEMENT

THIS MAINTENANCE EASEMENT AGREEMENT (the "Agreement") is made and entered into this [handwritten: 18th] day of [handwritten: February], 2000, by and between HUNTER'S RIDGE MAINTENANCE ASSOCIATION, a Delaware corporation ("HRMA"), and PAUL SCHLOSSER, of New Castle County, Delaware ("Schlosser").

WHEREAS, HRMA is the agency created by the original developer of the residential subdivision known as Hunter's Ridge, as shown on the Record Major Subdivision Plan of Hunter's Ridge, recorded January 12, 1989, in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No. 9600, to administer and enforce certain restrictions and covenants and administer and maintain certain lands of Hunter's Ridge; and

WHEREAS, Schlosser is the owner of a certain piece or parcel of land with the improvements thereon erected situate in Mill Creek Hundred, New Castle County, Delaware, referenced by Tax Parcel No. 08-036.10-257, and more fully described in that certain Deed and recorded in the Office of the Recorder of Deeds in and for New Castle County, Delaware, in Deed Book 2236, Page 151, (the "Schlosser Land").

NOW, THEREFORE, WITNESSETH, that the parties hereto in consideration of the sum of One Dollar ($1.00), the receipt and sufficiency of which is hereby acknowledged, together with the mutual covenants, promises, conditions and stipulations contained herein, hereby agree as follows:

1. Schlosser hereby grants and conveys unto HRMA, its successors and assigns, a nonexclusive and perpetual maintenance easement for the purpose of installing, constructing, repairing, replacing, renewing, reconstructing, inspecting and maintaining an entrance sign and the landscaping over, across, on and under that portion of the Schlosser Land as shown as Parcel # 1 on the Maintenance Easement Plan of "Plan of proposed easement to be acquired by Hunter's

Ridge Association for Entrance Signs", attached hereto and made a part hereof (the "Maintenance Easement Area").

[stamp: NCC 04A 15:26 JN06'00 089 $.00 ST]

[stamp: NCC[?] 04A 15:26 JN06'00 091 $.00 RC[?]]

[handwritten: 5/17648]

2. Schlosser further grants a right of access for maintenance and landscaping purposes over, across, on and under an additional portion of the Schlosser Land which land shall consist of a parcel of land beginning at the southwest corner of the said Parcel # 1 and extending northwesterly and along the northeasterly side of Ebenezer Church Road a distance of 300' to a point;[?] thence northwesterly and perpendicular to the said northeasterly side of Ebenezer Church Road 15' to a point; thence southeasterly and parallel to the said northeasterly side of Ebenezer Church Road and distant 15 feet therefrom approximately 300' to the northwesterly corner of the said Parcel # 1; thence south 17°40'10" W 15' to the point and place of beginning. (Parcel # [handwritten: 1A] [handwritten: 125[?] to RD[?]]

3. Both Parcel # 1 and Parcel # 1A shall be deemed portions of the Maintenance Easement Area.

4. HRMA, its successors and assigns hereby covenant and agree to pay all costs and expenses incurred in constructing and landscaping the Maintenance Easement Area including maintenance, repair and restoration of the Maintenance Easement Area and the construction and landscape materials and other related appurtenances contained therein.

5. HRMA shall comply with all applicable rules, laws and regulations regarding the repair, maintenance and use of the Maintenance Easement Area and will, at HRMA's own expense, obtain any required permits or licenses with respect to constructing and landscaping of the Maintenance Easement Area.

6. HRMA is the sole owner of the entrance sign, stone facing, footings that hold the sign, lighting, electric fixtures and all landscaping, planting and materials used to decorate the "Maintenance Easement Area".

7. HRMA is not responsible for snow removal and sanding of the sidewalk area in front of the Maintenance Easement Area.

8. Upon initiating any work permitted under paragraph 1 above, HRMA shall complete the same within a reasonable time.

9. Each party hereby covenants and agrees to indemnify and save the other, its officers, agents, employees, tenants, licensees, successors and assigns, harmless of and from any claim, cost, expense (including, without limitation, reasonable attorney's fees and litigation expenses), judgment action, violation, fine, or any other liability or demand whatsoever, arising from or in

any manner connected with acts, conduct, errors or omissions by the other party, its officers, agents, employees, tenants, licensees, successors and assigns, with respect to the Maintenance Easement Area.

10. These covenants shall run with and bind upon the Schlosser Land, and shall bind the parties hereto and their respective heirs, successors in title, legal representatives and assigns.

IN WITNESS WHEREOF, the parties have executed this Agreement the day and year first above written.

HUNTER'S RIDGE
MAINTENANCE ASSOCIATION

By: [signature]
David Bonner, President

[signature]
Witness

Attest: [signature]
Secretary

[Corporate Seal]

[signature]
Witness

[signature] (SEAL)
Paul Schlosser

STATE OF [strike-through: DELAWARE] [handwritten: New Jersey])
: SS.
[handwritten: Burlington[?]] [strike-through: NEW CASTLE] COUNTY)

BE IT REMEMBERED that on this [handwritten: 13th] day of [handwritten: March], 2000, personally came before me, the Subscriber, a Notary Public for the state and county aforesaid, David Bonner, President of Hunter's Ridge Maintenance Corporation, a corporation existing under the laws of the State of Delaware, party to this Agreement, known to me personally to be such, who acknowledged this Agreement to be his act and deed and the act and deed of the corporation, that the signature of the President thereto is in his own proper handwriting the seal affixed is the common and corporate seal of said corporation.

GIVEN under my hand and seal this [handwritten: 13th] day of [handwritten: March[?]], 2000.

[signature]
Notary Public
Print Name: [handwritten: Geraldine[?] A. Gager[?]]
My Commission Expires:

[stamp: GERALDINE A. GAGER[?] / Notary Public of New Jersey / My Commission Expires Sept. 23, 200[illegible]]

STATE OF DELAWARE)
: SS.
NEW CASTLE COUNTY)

BE IT REMEMBERED that on this [handwritten: 18] day of [handwritten: February], 2000, personally came before me, the Subscriber, a Notary Public for the state and county aforesaid, Paul Schlosser, party to this Agreement, known to me personally to be such, who acknowledged this Agreement to be his act and deed.

GIVEN under my hand and seal this [handwritten: 18] day of [handwritten: February], 2000.

[signature]
Notary Public
Print Name: [handwritten: Charles J. Gruber[?]]
My Commission Expires: [handwritten: 10/5/00]

SHA/mc; 1/4/00; O:[?]\Attorneys\SHA\Other\Hunter's Ridge - Schlosser - Maintenance Easement Agreement.wpd

[drawing: hand-lettered easement sketch plat at the corner of Haystack[?] Drive and Ebenezer Church Road, showing Easement ① on the lands of Paul Schlosser (circled parcel 2) and Easement ② on the lands of Robert G. Bu[illegible] (circled parcel 72), hatched DelDOT R/W

acquisition areas along the road, circled parcel 71 at right, north arrow at left, and graphic scale 0 to 50 at lower right]

Drawing labels (as legible):

LANDS OF
PAUL SCHLOSSER
BOOK 2236[?] PAGE 151

TAX PARCEL
08-036.10-257

HAYSTACK[?] DRIVE (50'[?] WIDE[?])

EBENEZER CHURCH ROAD

[illegible – approx. 2 words]

PROPERTY LINE PER DELDOT ACQUISITION

PROPERTY LINE PER M/R[?] 11308

Easement ① lines: [illegible] 15.00' — [illegible]55'34" E 14.21' — [illegible] 15.3[illegible]' — R=30.00' A=29.51'[?]

FOUND DELDOT R/W MON. (TYP.)

Easement ② lines: [illegible] 15.00'[?] — S 01°53'[illegible]" E 22.05'[?] — [illegible] W 15.00' — R=30.00' A=34.75'[?]

LANDS OF
ROBERT G. BU[illegible]
BOOK 1782 PAGE 262[?]

TAX PARCEL 08-03[illegible].20-73[?]

ACQUIRED LANDS
BOOK 2663[?] PAGE 117[?]

PROPERTY LINE PER DELDOT ACQUISITION

PROPERTY LINE PER M/R[?] 11308

▲ = PLACED WOOD HUB W/TACK

[drawing: diagonal-hatched box] = DELDOT R/W ACQUISITION AREA

EASEMENT ① AREA = 349.56± S.F. (0.008± ACRE)
P/O[?] DEED BOOK 2236 PAGE 151

EASEMENT ② AREA = 668.22± S.F. (0.015± ACRE)
P/O[?] DEED BOOK 1782 PAGE 262

[signature]

Transcription Notes

- p. 1: Bottom imprint: the first letters are broken (could be "WCC" or "NCC") and are read as "NCC" to match the margin imprint; the last letters could be "#C", "PC" or "RC" and are read as "RC".
- p. 1: The day and month on the blank lines are handwritten ("18th" and "February"), and "5/17648" is handwritten below the bottom imprint, probably an instrument or recording reference.
- p. 1: The plan title in paragraph 1 reads "Hunter's Ridge Association" (no "Maintenance"), unlike the party name "HUNTER'S RIDGE MAINTENANCE ASSOCIATION"; this is as printed in the original.
- p. 2: Recording stamp: the "BK" and "PG" letters are not legible and the digits are broken; the group is read as "2840" (the third digit could be 5), matching the legible "BK2840" stamp on page 4, so this page is presumably BK 2840 PG 0309. The "309" is clear.
- p. 2: Paragraph 2, "300' to a point;[?] thence": the mark prints as a colon but is read as a semicolon, matching the parallel "to a point; thence" later in the paragraph; it could be a typed colon.
- p. 2: Paragraph 2, "(Parcel # 1A": "1A" is handwritten and the parenthesis is never closed in the original.
- p. 2: Paragraph 2, handwritten annotation after "1A": the upper word reads approximately "125" (could be "RES" or "YES") and the lower words read "to RD" (could be "ORD"), with a long underline; likely a later addition.
- p. 2: Paragraph 9 has no comma or other word between "judgment" and "action"; kept as printed.
- p. 3: The Attest (Secretary) signature appears to read "Winifred Y. Teachey"; no typed name is printed under it.
- p. 3: The first Witness signature is only partly legible, roughly "[initial] Antonelli", and the second is not reliably legible, roughly "[initials] Boyd/Royal"; both are shown only as [signature].
- p. 3: "[Corporate Seal]" is printed text in the original, and no embossed seal impression is visible.
- p. 4: Recording stamp: "BK2840" and "311" are legible, but the two or three characters between them are dropped out; "PG0" is inferred from the stamp's format and spacing.
- p. 4: First acknowledgment: the printed "DELAWARE" and "NEW CASTLE" are struck through by hand, "New Jersey" is written above the state, and the handwritten county above "NEW CASTLE" has broken letters and is read as "Burlington".
- p. 4: First acknowledgment: in the "GIVEN" line only fragments of the handwritten month survive (".7..h"), so it is read as "March" by matching the first blank.
- p. 4: First acknowledgment: the handwritten name on the "Print Name" line is broken at the start ("...line A. Gager"); "Geraldine" and "Gager" are supported by the notary stamp, whose surname could also be "GAGES". The last digit of the stamp's expiration year ("200_") is illegible, and no handwritten date follows "My Commission Expires:" in this block.

- p. 4: Second acknowledgment: the notary's handwritten block-letter name reads "CHARLES J. G?UBER"; it is read as "Gruber", but "Garber" or "Gauber" are also possible.
- p. 4: The first acknowledgment names "Hunter's Ridge Maintenance Corporation", unlike the party name "HUNTER'S RIDGE MAINTENANCE ASSOCIATION" on pages 1 and 3; this is as printed in the original.
- p. 4: The first acknowledgment has no punctuation between "handwriting" and "the seal affixed"; kept as printed.
- p. 4: The drive letter in the tiny footer file-path line looks like "O.\" in the scan and is read as "O:\".
- p. 5: Recording stamp: the left group is illegible, and the right group shows a clear "3" and "1" followed by a fragmentary third digit that may be "2" (which would fit the sequence 309 on page 2 and 311 on page 4), but this is not confirmed.
- p. 5: On the plat, the book digits in "BOOK 2236[?] PAGE 151" under Paul Schlosser are poorly formed and the page digits in "BOOK 1782 PAGE 262[?]" under Robert G. Bu... are faint; the legend lines "DEED BOOK 2236 PAGE 151" and "DEED BOOK 1782 PAGE 262" agree with them.
- p. 5: "HAYSTACK[?] DRIVE (50'[?] WIDE[?])" is very faint and could instead read "Hayrake" and "(50' R/W)".
- p. 5: A faint rotated two-line label at the right edge near the curve (about two words, possibly a street name) is unreadable.
- p. 5: "M/R[?] 11308" appears twice along the hatched strips; the prefix could be M/R, M/F or M/S, and "11308" is the same in both.
- p. 5: Easement 1 dimensions: the bearings are largely illegible, and only "55'34" E" on the top line is partly readable, preceded by a degree value ending in 8; the right-side distance reads "15.3?" (could be 15.35') and the arc length reads A=29.51' (could be 29.31').
- p. 5: Easement 2 dimensions: the top line reads 15.00'[?] (could be 15.07'), the right line reads 22.05'[?] (could be 22.85') with a bearing that partly reads "S 01°53'2?" E", the other bearings are illegible, and the last digits of "R=30.00' A=34.75'" are uncertain.
- p. 5: "ROBERT G. BU[illegible]": the rest of the surname is unreadable (could be Burt, Burke or Burkett).
- p. 5: "TAX PARCEL 08-03[illegible].20-73[?]": the third digit of the map number could be 7 or 4 and is unresolved, and "73" is also uncertain.
- p. 5: "ACQUIRED LANDS BOOK 2663[?] PAGE 117[?]" is rotated inside the hatched area; the book number could also be 2665 or 2263, and the page number is also uncertain.
- p. 5: The "P/O[?]" prefix on the legend deed lines could be "P/O" or "N/O"; "P/O" (part of) best fits the shape.
- p. 5: The handwritten signature at the lower left has no printed name and possibly reads "Raymond ... Thacker" or similar; shown only as [signature].